

The unredacted versions of both pleadings were lodged for the Court's review. The redacted materials are represented to include confidential information that presents a risk of serious personal or other injury to the parties to this action and other third parties if disclosed publicly. *Id.* at ¶13. The Portions to be Sealed appear narrowly tailored.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

#### Disposition

The Court finds and orders as follows:

1. The Motion to Seal is GRANTED. The Court orders the sealing of Portions to be Sealed that were filed provisionally under seal.
2. The Court shall issue the order after hearing.

**8. 9:00 AM CASE NUMBER: C24-02589**  
**CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;**  
**FILED BY: HOFFMAN, MICHAEL**  
**\*TENTATIVE RULING:\***

#### **ATTACHMENT A**

**LINES 8-16 and 19-20: MICHAEL HOFFMAN, ET AL. VS. PETER DOCTER, ET AL.**  
**(C24-00689)**

Plaintiff Michael Hoffman ("Plaintiff") filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the "Motions to Compel Further Responses." The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below. The Court address each of them in turn.

#### Background

The discovery requests which remain at issue in the Motions to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. **Special Interrogatories Nos. 7, 9-14, 19-26, 32, 34 and 35 (Set One)** propounded by Plaintiff

upon defendant Mark Becker, Inc. (the “**MBI SROGs**”);

2. **Special Interrogatories Nos. 5, 7-13, 15-17, 23, 25 and 26** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker SROGs**”);
3. **Special Interrogatories Nos. 1, 8-9, 13 and 16** (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter SROGs**”);
4. **Request for Production of Documents Nos. 1, 4-6, 10-14, 20, 25, 27, 29-30, 33-39, 42-47, 50-54, 62-66, 71 and 74-78** (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI RPDs**”);
5. **Request for Production of Documents Nos. 1, 4-6, 10-14, 20, 25, 27, 29-30, 33-39, 42-47, 50-54, 62-66, 71 and 74-78** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker RPDs**”);
6. **Request for Production of Documents Nos. 8, 9 and 10** (Set One) propounded by Plaintiff upon defendant Comerica Bank & Trust, N.A. (the “**Comerica RPDs**”);
7. **Request for Production of Documents Nos. 14, 19, 20, 32-39, 54 and 60** (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter RPDs**”);
8. **Form Interrogatories (General) No.17.1** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker FROGs**”); and
9. **Form Interrogatories (General) No.17.1** (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI FROGs**”).

Opposition papers were filed on March 10, 2026.

Amended Separate Statements and reply papers were filed by Plaintiff on March 16, 2026.

#### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition papers and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery

Requests at issue:

**Special Interrogatories: MBI SROGs**

**MBI SROGs No. 7**

First, this response has been amended since the filing of the motion. Declaration of Ondrej Likar in Support of MBI's Opposition to Motion to Compel Further Responses filed March 10, 2026 (re MBI SROGs), ¶5 and **Exhibit B** thereto. Indeed, amended responses were served as to most of the subject interrogatory responses, including Nos. 7, 9-14, and 20-25 raised by the motion (the "Amended MBI Interrogatory Responses"). Of the subject interrogatories, only **Nos. 19, 26, 32 and 35** appear not to have been amended since the filing of the motion. Those are addressed in turn below.

Any issue with the further responses, as amended, would have to have been raised by a motion directed at the Amended MBI Interrogatory Responses within the statutory timeframe. See Code Civ. Proc. § 2031.310(c) ("Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.").

Second, even if the Court arguably has discretion to consider the motion to compel further responses as relates to the Amended MBI Interrogatory Responses, the Court declines to do so. Plaintiff failed to timely file the Amended Separate Statements until March 16, 2026, days before the hearing and after the due date for Opposition papers.

Third, even if the Court were inclined to consider the Amended Separate Statements and whether to compel further responses as relates to the Amended MBI Interrogatory Responses, the motion is further defective because Plaintiff failed to demonstrate the statutorily required meet and confer as to the Amended MBI Interrogatory Responses. Plaintiff failed to meet and confer in good faith—**either in person, by telephone, or by videoconference**—to resolve any perceived remaining issues with respect to the Amended MBI Interrogatory Responses.

Plaintiff is admonished for such failure to meet and confer in good faith before persisting in prosecuting the discovery motion with the Court. See Code Civ. Proc. § 2016.040 ("A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."); see also Code Civ. Proc. § 2030.300(b)(1) ("A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.").

Lastly, even if the Court were to reach the merits of the request for a further response to this discovery request, the Court would deny it. Plaintiff's request that the responding party "IDENTIFY each and every COMMUNICATION between YOU and WOLFF between January 1, 2012 and present" is excessively broad. It is unbounded by subject matter which is aggravated by the more than 13 year period covered by the request. The Court is also mindful that the crux of allegations relate to the development work at issue in this case, the earliest allegations of matters relating to such work are alleged to have occurred in the early 2020s and later. See Complaint, ¶18 *et seq.* Even presuming that some discovery relating back to the earliest events described going back to 2012 may arguably lead to the discovery of admissible evidence (see Complaint, ¶14 *et seq.*), the Court concludes that the burden, expense, and intrusiveness of the discovery request clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

Therefore, the motion is DENIED as to this interrogatory.

**MBI SROGs No. 9-14, and 20-25**

As discussed above, all of these responses have been amended since the filing of the motion and the motion as to these items is DENIED for same reasons discussed above in connection with MBI SROGs No. 7.

In light of the multiple procedural defects, the Court declines to address further the substantive merits of the request for further responses to these discovery requests as relates to the Amended MBI Interrogatory Responses.

**MBI SROGs No. 19**

**SPECIAL INTERROGATORY NO. 19**

Identify the total sum paid to YOU for services YOU rendered CONCERNING the DEVELOPMENT.

The responding party objects based on the scope of the request, including in view of the breadth of certain definitions. Among those is the definition of “YOU” which occurs in an earlier interrogatory. The incorporated definitions of “MBI,” “YOU” and “YOUR” in the request render the request grossly overbroad on its face. Incorporated in the definition of “YOU” and “YOUR” is language that purports to wrap in an expansive web of persons and entities associated with the responding party (especially considering the reference to “predecessors in interest,” “partners” and “attorneys”) in a manner that would sweep in matters not reasonably related to a legitimate discovery need in light of the nature of the claims at issue in the case. As written, for example, MBI’s attorneys would have to identify all sums paid to them in connection with this litigation thus far as such payments no doubt concern the “DEVELOPMENT” as those other terms are also broadly defined.

While one can imagine a more narrowly tailored request that might well be discoverable in light of the issues in this case, the Court is ruling on the request as propounded.

The motion is DENIED as to this interrogatory.

**MBI SROGs No. 26**

**SPECIAL INTERROGATORY NO. 26**

IDENTIFY all safety analyses undertaken in connection with the design of the DEVELOPMENT.

It is not clear to the Court how identifying “all safety analyses” in connection with “the design” of the development is relevant or reasonably calculated to lead to the discovery of admissible evidence. Even if arguably somehow probative of some fact of consequence to the claims as pled in this case, the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

**MBI SROGs No. 32**

**SPECIAL INTERROGATORY NO. 32**

IDENTIFY each and every non-privileged COMMUNICATION between YOU and any PERSON CONCERNING PLAINTIFFS between January 1, 2021 and present.

The definition of "PERSON" (contained in a prior interrogatory) is extraordinarily broad.

PERSON: name; address; telephone number; and (ii) "PERSON(S)" means, without limitation, any natural PERSON, governmental entity or subdivision thereof, corporation, partnership, limited partnership, limited liability partnership, limited liability company, or other legal entity, and includes the present and former officers, executives, partners, directors, managers, trustees, employees, attorneys, agents, representatives, brokers and all other PERSONS acting or purporting to act on behalf of them, and any of their present or former parent corporations, subsidiaries, affiliates, divisions, predecessors and successors-in-interest.)

Given the scope, essentially any person or entity whatsoever, this interrogatory is grossly overbroad as it is not otherwise bounded by any subject matter whatsoever. It also appears evident that the request would potentially sweep in matters not probative of the claims at issue or otherwise reasonably calculated to lead to the discovery of admissible evidence.

Even if somehow probative of some fact of consequence to the claims as pled in this case, the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

**MBI SROGs No. 35**

**SPECIAL INTERROGATORY NO. 35**

IDENTIFY each and every COMMUNICATION between YOU and any PERSON CONCERNING the 2024 DESIGN REVIEW APPLICATION. (For the purposes of these requests, the term "2024 DESIGN REVIEW APPLICATION" means the application for Design Review submitted by Mark Becker to the CITY on approximately September 30, 2024 in connection with the DEVELOPMENT.)

The compounding of multiple extraordinarily broad defined terms, as discussed at length above, renders this interrogatory overbroad. Considering that and in view of the definition of "IDENTIFY" as applied to a "COMMUNICATION," the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

**Special Interrogatories: Mark Becker SROGs**

**Mark Becker SROGs No. 5**

The motion as to this interrogatory is DENIED for same reasons discussed above in connection with MBI SROGs No. 7.

**Mark Becker SROGs Nos. 7-13, 15-16, and 23**

Similar to the issues discussed above, all of these responses have been amended since the filing of the motion and the motion as to these interrogatories is DENIED for same reasons discussed above.

**Mark Becker SROGs Nos. 17, 25 and 26**

The responses to these interrogatories have not been amended. The substance of the requests have been considered, as addressed above. The motion is DENIED as to these interrogatories.

**Special Interrogatories: Peter Docter SROGs**

**Peter Docter SROGs Nos. 1, 8-9, 13, and 16**

It appears that defendant Peter Docter also served second amended responses on September 19, 2025. See Declaration of Ondrej Likar filed March 10, 2026 (re Peter Docter SROGs), ¶17 (“The parties continued to meet and confer and Peter Docter served further amended responses to Special Interrogatories on June 6, 2025 and September 19, 2025.”). However, it does not appear that a full copy of the amended responses were attached to this declaration. Nor does it appear that the second amended responses were attached to the moving papers either, though reference is made to them.

Accordingly the Court is not in a position to review and make determinations as to this set of interrogatories at this time.

The parties are ordered to engage in further meet and confer regarding this set of interrogatories, as addressed further below.

**Form Interrogatories (General): Mark Becker FROGs**

**Mark Becker FROGs No.17.1.**

Amended responses to these Form Interrogatories were served on September 26, 2025. Declaration of Kevin Tredway filed September 30, 2025, ¶11 and **Exhibit G** thereto. Both the moving and Opposition papers make clear that Plaintiff did not meet and confer as to the specific amended response to Mark Becker FROGs No.17.1 before the motion was filed.

Moreover, a second amended response to Mark Becker FROGs No.17.1 was served on March 10, 2026. Declaration of Ondrej Likar filed March 10, 2026, ¶17 and **Exhibit A** thereto.

The Court does not address the substance of the response to **Mark Becker FROGs No.17.1**, as Plaintiff failed to proffer an adequate declaration reflecting statutorily compliant meet and confer efforts before resorting to the motion as to this interrogatory. See Code Civ. Proc. §§ 2016.040 and 2030.300(b)(1).

The motion is DENIED as to this interrogatory.

**Form Interrogatories (General): MBI FROGs**

**MBI FROGs No.17.1.**

The motion as to this interrogatory is DENIED for same reasons discussed above in connection with Mark Becker FROGs No.17.1.

### **Further Meet and Confer regarding the Remaining Discovery Requests**

The Court continues the hearing as related to the Peter Docter SROGs and all of the other Discovery Requests not addressed above (the “Remaining Discovery Requests”). For clarity, the Remaining Discovery Requests are as follows:

- **Peter Docter SROGs**
- **MBI RPDs**
- **Mark Becker RPDs**
- **Comerica RPDs**
- **Peter Docter RPDs**

The parties are ordered to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve any remaining issues with respect to the Remaining Discovery Requests (the “Further Meet and Confer”).

**Joint Separate Statement Regarding Remaining Discovery Requests.** As to any Remaining Discovery Requests not resolved by the Further Meet and Confer, the parties shall prepare and submit a Joint Separate Statement. This pleading shall confirm to the requirements of Rule 3.1345 of the California Rules of Court (“CRC”). **In addition, the Joint Separate Statement shall be prepared in a table/chart format with a landscape orientation on legal sized paper and a hard copy version provided to the Court.** Plaintiff shall prepare the initial draft and then provide the draft to the other side. No single entry on the Joint Separate Statement, other than the verbatim copy of the subject request(s) and response(s), shall exceed 200 words. Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file endorsed copy of the pleading. The Joint Separate Statement shall be filed no later than May 4, 2026. **The parties shall also cooperate to provide the courtesy hard copy of the Joint Separate Statement to Department 34 by May 4, 2026.**

The parties are admonished to give due consideration to the findings made above with respect to the interrogatories considered and ruled upon by the Court. The parties are further admonished to consider whether agreed upon limitations, carve-outs or protective orders may resolve the issues with respect to the Remaining Discovery Requests.

### **Sanctions**

The Court reserves consideration of the imposition of sanctions pending resolution of the further proceedings. The Court will be mindful of the robustness, or lack thereof, of the parties’ efforts and engagement in these further meet and confer efforts when considering the imposition of sanctions or the mitigation of them.

### **Disposition**

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses are DENIED IN PART (as to the MBI SROGs, Mark Becker SROGs, Mark Becker FROGs and MBI FROGs and the discovery no longer at issue based on the Joint Report) and CONTINUED IN PART as to Remaining Discovery Requests.
2. The hearing on the Motions to Compel Further Responses as to the Remaining Discovery Requests is continued to **May 18, 2026, 9:00 am** in **Department 34**.

3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02589  
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER  
\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL  
INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR  
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86  
FILED BY: HOFFMAN, MICHAEL  
\*TENTATIVE RULING:\*

See LINE 8 above.

10. 9:00 AM CASE NUMBER: C24-02589  
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER  
\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF  
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR  
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;  
FILED BY: HOFFMAN, MICHAEL  
\*TENTATIVE RULING:\*

See LINE 8 above.

11. 9:00 AM CASE NUMBER: C24-02589  
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER  
\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF  
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR  
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;  
FILED BY: HOFFMAN, MICHAEL  
\*TENTATIVE RULING:\*

See LINE 8 above.

12. 9:00 AM CASE NUMBER: C24-02589  
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER  
\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR  
ADMISSION (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR MONETARY  
SANCTIONS IN THE AMOUNT OF \$3,398.86;  
FILED BY: HOFFMAN, MICHAEL  
\*TENTATIVE RULING:\*